

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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MARCUS REYES

Plaintiff,

COMPLAINT

09 CV 5444

-against-

THE CITY OF NEW YORK, AMADO BATISTA
(SHIELD NO. 2455) UNDERCOVER #036 (SHIELD NO.
4362), SGT. TIMOTHY DEEVY (SHIELD NO. 2807),
DETECTIVE DANIEL HOWELL (SHIELD NO. 7279),
DETECTIVE MANUEL SANCHEZ (SHIELD NO. 7110),
DETECTIVE GREGORY PERPALL (SHIELD NO. 394),
DETECTIVE ANTHONY SCHAFFER (SHIELD NO.
6513), DETECTIVE ALBERT ROMAN (SHIELD NO.
3183).

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to the Civil Rights Act of 1871, 42 U.S.C. §1983 for the Defendants' commissions of acts under color of law in violation of the Plaintiff's rights under Fourth, Sixth, and Fourteenth amendments to the United States Constitution and Article I, Section 12 of the New York State Constitution and of common law of the State of New York. The case arises from a November 23, 2008 incident in which members of the New York City Police Department ("NYPD") subjected plaintiff to false arrest, excessive force, an illegal strip search and fabricated evidence.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper pursuant to 28 U.S.C. § 1391(b) and (c) because defendant City of New York is subject to personal jurisdiction in the Eastern District of New York.⁰

PARTIES

4. Plaintiff is a resident of the State of New York.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. Police Officer Amado Batista, Undercover #036, Sgt. Timothy Deevy, Detective Daniel Howell, Detective Manuel Sanchez, Detective Gregory Perpall, Detective Anthony Schaffer and Detective Albert Roman (collectively the “officers”) are members of the NYPD who were involved in the arrest of plaintiff, and the events arising out of plaintiff’s arrest. The Officers are liable for directly participating in the acts described herein and for failing to intervene to protect plaintiff from the illegal conduct of their fellow officers and subordinates.

STATEMENT OF FACTS

7. On November 23, 2008, at approximately 3:15 A.M. in front of 2710 Morris Avenue, in The Bronx, New York, plaintiff was arrested and charged with selling crack cocaine and other related charges. Plaintiff was neither engaged in selling cocaine nor involved in any criminal activity. Plaintiff was merely re-entering his building at 2710 Morris Avenue.

8. In the course of his arrest plaintiff was subjected to excessive force when he was struck three times in the back of his head by one of the officers. Plaintiff was also struck about his body and then handcuffed in an excessively tight manner.

9. Plaintiff was subsequently taken to the 42nd Precinct where he was strip - searched by two male officers. After his strip-search, plaintiff was then taken to North Central Hospital for treatment to the injuries he sustained during his arrest.

10. Plaintiff was once again taken to the 42nd Precinct. On the afternoon of November 23, 2009 plaintiff was taken to Central Booking for further arrest processing and to await arraignment.

11. During this period, an Officer or Officers met with an Assistant District Attorney and misrepresented that plaintiff had sold and possessed drugs.

12. On or about the morning of November 24, 2008, plaintiff was arraigned in Criminal Court, Bronx County and released. Due to confusion and a lack of understanding of the judicial process, plaintiff failed to appear on his court date on November 28, 2008. On December 11, 2008 bail was set on plaintiff. Plaintiff was taken to Rikers Island where he remained until December 16, 2008.

13. After numerous appearances, all charges against plaintiff were dismissed

14. As a result of defendants' actions, plaintiff experienced pain and physical injuries to his wrists, face, and body, emotional distress, fear, embarrassment, humiliation, discomfort, loss of liberty, loss of freedom, loss of income, and damage to reputation.

**FEDERAL CLAIMS AGAINST OFFICER
AMADO BATISTA, UNDERCOVER #036, SGT.
TIMOTHY DEEVY, DETECTIVE DANIEL
HOWELL, DETECTIVE MANUEL SANCHEZ,
DETECTIVE GREGORY PERPALL,
DETECTIVE ANTHONY SCHAFFER AND
DETECTIVE ALBERT ROMAN**

15. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-14 as if fully set forth herein.

16. The conduct of the Officers as described herein, amounted to false arrest, excessive force, an illegal strip search and fabricated evidence. This conduct violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S STATE LAW CLAIM AGAINST
AMADO BATISTA, UNDERCOVER #036, SGT.
TIMOTHY DEEVY, DETECTIVE DANIEL
HOWELL, DETECTIVE MANUEL SANCHEZ,
DETECTIVE GREGORY PERPALL,
DETECTIVE ANTHONY SCHAFFER AND
DETECTIVE ALBERT ROMAN**

17. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-17 as if fully set forth herein.

18. The conduct of Amado Batista, and Police Officers John Does 1-4, as described herein, amounted to false arrest, excessive force, an illegal strip search, malicious prosecution, assault, battery, negligence and fabricated evidence in violation of the laws of the State of New York.

**FEDERAL CLAIM AGAINST THE CITY OF
NEW YORK**

19. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-18 as if fully set forth herein.

20. The City of New York directly caused the constitutional violations suffered by plaintiff.

21. Upon information and belief, the City of New York, at all relevant times herein, was aware from notices of claim, lawsuits, complaints filed with the City, and from the City's own observations, that its police and correction officers, including the individual defendants, are unfit, ill-tempered officers who have the propensity to commit the acts alleged herein. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor its officers and improperly retained and utilized them. Moreover, the City of New York failed to adequately investigate prior complaints against its officers.

22. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: June 18, 2010
New York, New York

Christopher Wright
305 Broadway, 14th Floor
New York, New York 10007
(212) 822-1419

By:

/ss/

Christopher Wright (CW-8079)